

operative pleading. A Second Amended Complaint was e-filed by Plaintiff on 5.14.26 and rejected by the clerk's office on 5.20.26 for failure to obtain leave of court. A demurrer to a SAC was filed by Defendant on 6.10.26. Thus, it is unclear whether Defendant is demurring to a document that has not been accepted by the court, or incorrectly referred to a SAC when the demurrer was as to the FAC.

Parties are to be prepared to discuss the above issue.

11.

CASE #	CASE NAME	HEARING NAME
CVPS2603254	LIVRERI VS LIVRERI	DEFENDANT PETER LIVRERI'S GENERAL AND SPECIAL DEMURRER TO PLAINTIFF'S COMPLAINT

Tentative Ruling:

No opposition filed.

Demurrer is SUSTAINED with leave to amend. Plaintiff is directed to file an amended complaint within 30 days, specifically addressing jurisdiction of this court for this type of matter, specifically why this is an unlimited jurisdiction case and also why this matter should not be in probate court.

Case Management Conference remains set for 11.03.26.